

FIRST REGULAR SESSION

# HOUSE BILL NO. 457

## 103RD GENERAL ASSEMBLY

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INTRODUCED BY REPRESENTATIVE TAYLOR (48).

1477H.011

DANA RADEMAN MILLER, Chief Clerk

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### AN ACT

To repeal section 191.227, RSMo, and to enact in lieu thereof one new section relating to health care records.

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*Be it enacted by the General Assembly of the state of Missouri, as follows:*

Section A. Section 191.227, RSMo, is repealed and one new section enacted in lieu thereof, to be known as section 191.227, to read as follows:

191.227. 1. All physicians, chiropractors, hospitals, dentists, and other duly licensed practitioners in this state, herein called "providers", shall, upon written request of a patient, or guardian or legally authorized representative of a patient, furnish a copy of his or her record of that patient's health history and treatment rendered to the person submitting a written request, except that such right shall be limited to access consistent with the patient's condition and sound therapeutic treatment as determined by the provider. Beginning August 28, 1994, such record shall be furnished within a reasonable time of the receipt of the request therefor and upon payment of a fee as provided in this section.

2. Health care providers may condition the furnishing of the patient's health care records to the patient, the patient's authorized representative or any other person or entity authorized by law to obtain or reproduce such records upon payment of a fee for:

(1) (a) Search and retrieval, in an amount not more than twenty-four dollars and eighty-five cents plus copying in the amount of fifty-seven cents per page for the cost of supplies and labor plus, if the health care provider has contracted for off-site records storage and management, any additional labor costs of outside storage retrieval, not to exceed twenty-three dollars and twenty-six cents, as adjusted annually pursuant to subsection 6 of this section; or

EXPLANATION — Matter enclosed in bold-faced brackets **[thus]** in the above bill is not enacted and is intended to be omitted from the law. Matter in **bold-face** type in the above bill is proposed language.

18 (b) The records shall be furnished electronically upon payment of the search,  
19 retrieval, and copying fees set under this section at the time of the request or one hundred  
20 eight dollars and eighty-eight cents total, whichever is less, if such person:

21 a. Requests health records to be delivered electronically in a format of the health care  
22 provider's choice;

23 b. The health care provider stores such records completely in an electronic health  
24 record; and

25 c. The health care provider is capable of providing the requested records and  
26 affidavit, if requested, in an electronic format;

27 (2) Postage, to include packaging and delivery cost;

28 (3) Notary fee, not to exceed two dollars, if requested.

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30 Such fee shall be the fee in effect on February 1, 2018, increased or decreased annually under  
31 this section.

32 3. For purposes of subsections 1 and 2 of this section, "a copy of his or her record of  
33 that patient's health history and treatment rendered" or "the patient's health care records"  
34 includes a statement or record that no such health history or treatment record responsive to the  
35 request exists.

36 4. Notwithstanding provisions of this section to the contrary, providers may charge  
37 for the reasonable cost of all duplications of health care record material or information which  
38 cannot routinely be copied or duplicated on a standard commercial photocopy machine.

39 5. The transfer of the patient's record done in good faith shall not render the provider  
40 liable to the patient or any other person for any consequences which resulted or may result  
41 from disclosure of the patient's record as required by this section.

42 6. Effective February first of each year, the fees listed in subsection 2 of this section  
43 shall be increased or decreased annually based on the annual percentage change in the  
44 unadjusted, U.S. city average, annual average inflation rate of the medical care component of  
45 the Consumer Price Index for All Urban Consumers (CPI-U). The current reference base of  
46 the index, as published by the Bureau of Labor Statistics of the United States Department of  
47 Labor, shall be used as the reference base. For purposes of this subsection, the annual average  
48 inflation rate shall be based on a twelve-month calendar year beginning in January and ending  
49 in December of each preceding calendar year. The department of health and senior services  
50 shall report the annual adjustment and the adjusted fees authorized in this section on the  
51 department's internet website by February first of each year.

52 7. A health care provider may disclose a deceased patient's health care records or  
53 payment records to the executor or administrator of the deceased person's estate, or pursuant  
54 to a valid, unrevoked power of attorney for health care that specifically directs that the

55 deceased person's health care records be released to the agent after death. If an executor,  
56 administrator, or agent has not been appointed, the deceased prior to death did not specifically  
57 object to disclosure of his or her records in writing, and such disclosure is not inconsistent  
58 with any prior expressed preference of the deceased that is known to the health care provider,  
59 a deceased patient's health care records may be released upon written request of a person who  
60 is deemed as the personal representative of the deceased person under this subsection.  
61 Priority shall be given to the deceased patient's spouse and the records shall be released on the  
62 affidavit of the surviving spouse that he or she is the surviving spouse. If there is no surviving  
63 spouse, the health care records may be released to one of the following persons:

64 (1) The acting trustee of a trust created by the deceased patient either alone or with  
65 the deceased patient's spouse;

66 (2) An adult child of the deceased patient on the affidavit of the adult child that he or  
67 she is the adult child of the deceased;

68 (3) A parent of the deceased patient on the affidavit of the parent that he or she is the  
69 parent of the deceased;

70 (4) An adult brother or sister of the deceased patient on the affidavit of the adult  
71 brother or sister that he or she is the adult brother or sister of the deceased;

72 (5) A guardian or conservator of the deceased patient at the time of the patient's death  
73 on the affidavit of the guardian or conservator that he or she is the guardian or conservator of  
74 the deceased; or

75 (6) A guardian ad litem of the deceased's minor child based on the affidavit of the  
76 guardian that he or she is the guardian ad litem of the minor child of the deceased.

77 **8. (1) Records containing a patient's health history and treatment created by an**  
78 **emergency care provider, as defined in section 191.630, or a telecommunicator first**  
79 **responder, as defined in section 650.320, in the course of the provider's or responder's**  
80 **official duties while responding to a formal request for assistance shall be made**  
81 **available, upon written request, to any person authorized to obtain the patient's health**  
82 **care records under the provisions of this section.**

83 **(2) The furnishing of health care records under this subsection may be**  
84 **conditioned upon the payment of a fee in an amount equal to the fee allowed for the**  
85 **furnishing of any other health care record under this section.**

86 **(3) Nothing in this subsection shall limit the release of information regarding the**  
87 **general nature of the event that resulted in a formal request of assistance as long as any**  
88 **personal health information is redacted.**

89           **(4) Nothing in this subsection shall limit the release of information to facilitate**  
90 **the normal delivery of patient care or to evaluate the quality of care as part of an**  
91 **established quality improvement program.**

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